Showing contexts for: **PWDVA** in Mirza Khalid Baig S/O Mirza Sujat Baig ... vs Fouziya Mariyam W/O Mirza Khalid Baig on 19 December, 2025

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1. As both these applications arise from the matrimonial dispute between applicant No.1/ husband (Mirza Khalid Baig) and the sole respondent/ wife (Fouziya Mariyam Baig), they are being decided by this common judgment.

2. Criminal Application No.4050/2024 is filed by the applicants for quashing the criminal proceedings bearing **PWDVA** No.79/2023 pending on the file of the learned Judicial Magistrate First Class, Nanded, filed by the respondent/wife. Criminal Application No.2666/2025 is filed by the applicants for transferring RCC No.1627/2024 pending on the file of the learned JMFC, Nanded, to the Court of the learned JMFC, Beed.

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4. According to the applicants, the marriage of applicant No.1 and the respondent took place on 18.01.2021 and it is the second marriage of applicant No.1. The husband was required to perform the second marriage on account of death of first wife in Covid-19 pandemic and he is having two children from the first marriage. Sole purpose of marrying the respondent/ wife was to take proper care and nourishment of girls born out of the first marriage. On 08.11.2021, the husband suffered an accident and he was hospitalized for about two months. Though he survived, however, he suffered various ailments and as a result, he is bedridden. However, on 13.06.2023, the respondent/ wife has filed the criminal proceedings

bearing **PWDVA** *5* 31appln4050o24&2666o25 No.79/2023 before the learned JMFC at Nanded with sole intention to harass the husband and his relatives.

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7. After going through the **PWDVA** proceedings, it is revealed that the respondent/ wife has levelled allegations against all in-laws in general and omnibus manner, so as to harass them. It is pointed out that after filing of **PWDVA** proceedings, the *6* 31appln4050o24&2666o25 respondent has also filed FIR bearing Crime No.272/2023 with the Shivajinagar Police Station, Nanded, for the offences punishable under Section 498-A, 294, 323, 506 and 34 of the Indian Penal Code and the said proceedings are culminated in RCC No.1627/2024. The Division Bench of this Court vide order dated 13.06.2025 passed in Criminal Application No.4000/2024 (Mirza Khalid Baig and others vs. The State of Maharashtra and another), quashed the said FIR as well as RCC No.1627/2024 to the extent of other applicants, excluding the husband and mother- in-law.

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9. However, the learned advocate for the respondent *7* 31appln4050o24&2666o25 tried to justify that there are allegations against all the applicants, therefore, the proceedings may not be quashed and set aside. The learned advocate has taken me through all paragraphs of the **PWDVA** complaint and stated that the respondent/ wife has sufficiently quoted specific events and instances as regards harassment meted out to her.

10. The learned advocate for the applicants has, however, invited attention of this Court to the prayers of **PWDVA** proceedings. According to him, the respondent/ wife has claimed maintenance. Even if the **PWDVA** complaint is to be considered positively, the fact remains that the maintenance would be payable, if any, by the applicant/ husband alone and not by other applicants. Therefore, there is no hurdle in quashing the proceedings against other applicants.